

SEPARATE OPINION OF Mr. HUDSON.

I.

The special agreement of August 28th, 1936 formulates the question before the Court in this case in the following terms :

Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the "*Administration générale des Phares de l'Empire ottoman*", and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were assigned to that Government after the Balkan wars.

In a case between the same parties decided by the Court on March 17th, 1934 (Series A/B, No. 62), the question had been formulated in the special agreement of July 15th, 1931 (Series C, No. 74, p. 11), as follows :

Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the "*Administration générale des Phares de l'Empire ottoman*", and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories assigned to it after the Balkan wars or subsequently.

The striking similarity of these two questions makes it necessary to begin a consideration of this case with an analysis of the Court's judgment of March 17th, 1934, as a preliminary to an interpretation of the special agreement of August 28th, 1936.

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In the previous judgment, after analyzing the terms of the special agreement of July 15th, 1931 in the light of its history and after summarizing the arguments of the parties, the Court stated (p. 18) that

There are therefore three questions of substance with which the Court must deal: it must determine the intention of the Parties as regards the scope of the contract; it must consider whether this contract was "duly entered into" according to Ottoman law, and whether it is enforceable against Greece.

The answers given to these three questions constituted the basis of the judgment. As to the first question, the conclusion was reached that the parties to the contract of April 1st/14th, 1913 did not intend to exclude from the operation of the contract territories which were then under military occupation. As to the second question, the Court took the view that the contract of April 1st/14th, 1913 was "duly entered into" according to Ottoman law, in the sense that the formalities required for the validity of the contract had been complied with. As to the third question, the answer was given that the contract of April 1st/14th, 1913 was enforceable against Greece under the provisions of Article 9 of Protocol XII signed at Lausanne on July 24th, 1923 (28 League of Nations *Treaty Series*, p. 203). In addition to the replies given to these three questions, the Court answered (p. 26) three objections advanced by the Greek Government "to the consequences of applying Article 9 of Protocol XII".

The Court's decision in 1934 was

that the contract of April 1st/14th, 1913, between the French firm Collas & Michel, known as the "*Administration générale des Phares de l'Empire ottoman*", and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories assigned to it after the Balkan wars or subsequently.

Immediately before setting forth this decision, however, the Court made an important statement which it characterized as a "reservation". The special agreement of July 15th, 1931 had envisaged, in Chapter II as summarized by the Court (pp. 12, 13), "subsequent proceedings which are to follow the delivery of the judgment by the Court and the object of which is the settlement of all pecuniary claims of the Lighthouse Administration against the Greek Government or *vice versa*, as also the determination of the sum payable for buying out the concession, should the judgment declare that the contract of April 1st/14th, 1913 was duly entered into". It was doubtless with these "subsequent proceedings" in mind and to ensure that too much would not be read into its judgment that the Court made the following statement (p. 28):

Moreover, the Court holds that the Special Agreement only requires it to decide on a question of principle, and that it is not called upon to specify which are the territories, detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 is operative are situated. It is moreover all the more necessary to make this reservation because the Parties

have not argued before the Court the questions of fact and of law which might be raised in that connection and which the Court has not been asked to decide.

It may not have been necessary for this purpose, but the reservation would seem to have left the way open to the Greek Government, with respect to lighthouses in a particular territory, to contend, at any rate for reasons not dealt with in the judgment, that the operative part of that judgment to the effect that the contract of 1913 was duly entered into and was accordingly operative as to Greece, was not applicable.

This is precisely what happened. Four months after the delivery of the judgment, on July 17th, 1934, the Greek Ministry for Foreign Affairs addressed a *note verbale* to the French Legation at Athens (French Memorial, p. 42), in which it expressed the willingness of the Greek Government to carry out the Court's judgment, but observed that the Court had given, in its own words, only a decision on a question of principle, that it had not been called upon to determine the territories to which the contract was applicable, and that it had refrained from any such determination. The *note verbale* indicated the intention of the Greek Government to take advantage of the reservation made by the Court, and to confine its acceptance of the judgment to the questions which were before the Court and which the Court actually decided. It proceeded to set forth the view of the Greek Government that the contract of April 1st/14th, 1913 did not apply to lighthouses in Crete and Samos, that it was *dénué de tout effet à l'égard de ces îles*. No subsequent diplomatic exchanges have been placed before the Court; but the view of the Greek Government not being shared by the French Government, on August 28th, 1936 the two Governments concluded the special agreement under which the present case arises.

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The special agreement of August 28th, 1936 shows by its opening words that its conclusion is to be attributed to the reservation made by the Court in 1934, the text of the reservation being quoted in the first paragraph. The second paragraph describes the "difference of opinion" between the two Governments by stating that it relates to the question of "the applicability of the principle laid down" by the Court's judgment "in the case of lighthouses situated in Crete, including the adjacent islets, and in Samos". According to the third paragraph, this question was regarded on both sides as "accessory to the principal question" already decided by the Court; and in the fourth paragraph it is said that the two Governments considered that this question (*ladite question*) should be

referred to the Court. The fifth paragraph states that in consequence the two Governments request the Court, taking into account the period at which the territories specified were detached from the Ottoman Empire, to give its decision on the question there formulated. The sixth paragraph contains a reference to points of procedure. The seventh paragraph, dealing with the agreement's entering into force and its transmission to the Court, again emphasizes that the answer to the question submitted is "regarded as relating to the applicability in a particular case of the judgment already rendered by the Court".

It is the task of the Court to interpret this special agreement. In the performance of this task, the Court is not bound by the interpretations given to the instrument by the parties. Nor is it bound to confine itself to dealing with the instrument in the light of the arguments advanced by the parties. The questions to be decided are those contained in the special agreement as the Court itself construes that agreement; they may or may not be the same as those to which the parties have addressed themselves. Whatever may be the position when obligatory jurisdiction is being exercised, in answering a question placed before it by a special agreement the Court must have full freedom to construe the terms of the agreement, to say what is the question which the agreement requires it to answer, and to frame its answer in accordance with the applicable law.

Moreover, the text of the special agreement must be considered as a whole (Series B, No. 2, p. 23; Series A/B, No. 49, p. 317). This is especially important where, as here, the parties have not only formulated a question and directed that a certain element be taken into account in deciding it, but have also employed various descriptive phrases with reference to the question formulated.

The quotation in the first paragraph of the special agreement indicates the intention of both parties to place this case within the *cadre* of the reservation made by the Court in its earlier judgment, and to raise, in the words of the Court, "questions of fact and of law" which were not argued in 1934 and which the Court was not then asked to decide. In other words, it indicates that the Court is now asked to say whether Crete and Samos are among "the territories detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 is operative are situated".

The various descriptions given by the special agreement to the question submitted to the Court contain further indications: it is described (in the second paragraph) as a question "regarding

the applicability of the principle laid down by the said judgment [of 1934] in the case of lighthouses situated in Crete, including the adjacent islets, and in Samos"; (in the third paragraph) as being "accessory to the principal question which has already been decided"; and (in the seventh paragraph) as a question the answer to which will relate "to the applicability in a particular case of the judgment already rendered" by the Court. Clearly the parties did not intend to attack the earlier judgment, or to reopen any of the issues which it closed. That judgment was a *décision de principe*; it dealt in a general way with lighthouses to which the contract was applicable in Greek territories; it fixed "the scope of the contract" as governed by the intention of the parties; it declared that certain formalities of Ottoman law had been complied with; and it established, again in a general way, the enforceability of the contract as regards Greece. All of these points are now *res judicata*, and the parties show no disposition to challenge their character as such. The descriptions found in the special agreement indicate that what is now sought is a judgment on the "applicability in a particular case", "applicability in the case of lighthouses" situated in particular territories, of the points which were decided in 1934.

In reaching its decision, the Court is asked to take into account (*trancher, en tenant compte*) a special element of the case, *viz.*, the period (*l'époque*) at which Crete and Samos were "detached from the Ottoman Empire". Quite naturally so, as the only argument which had been advanced by the Greek Government in its *note verbale* of July 17th, 1934 in support of its view that the contract of April 1st/14th, 1913 did not apply to lighthouses in Crete and Samos, was that these territories had been detached from Turkey before that date. If other arguments might have been employed to support its view, the Greek Government had not chosen to use them. Hence, the Court would not be able to settle the "difference of opinion" which arose, without dealing with this argument. This explains the emphasis given by the parties to a particular feature of this case.

Yet it does not follow that the Court has been asked to deal only with this one element of the case. Nor does it follow that the Court is bound to answer the question formulated solely on the basis of its view as to the epoch of detachment. If the parties had so intended, they would have submitted to the Court a question formulated in terms which would have raised this single and simple issue. This they did not do. Instead, they formulated a much broader question relating to the validity and enforceability of the contract of 1913 as concerns

lighthouses in Crete and Samos. The Court having said in its previous judgment that the contract of 1913 was duly entered into and was accordingly operative as regards the Greek Government with respect to lighthouses situated in territories assigned to Greece after the Balkan wars or subsequently, but having reserved the specification of such territories in which lighthouses in regard to which the contract of 1913 is operative are situated, the parties have now asked specifically whether Crete and Samos are among those territories. In the terms formulated, the question is whether the contract of 1913 "was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos". To restrict the issues in this case to the single question as to the epoch of detachment would be to pay insufficient attention to this careful formulation in the fifth paragraph of the special agreement. While the Court is bound to take account of the period at which Crète and Samos were detached from the Ottoman Empire, it is free to appreciate the importance of that element of the case in arriving at its answers to the much broader questions presented.

Viewing the special agreement as a whole, it seems that the parties intended to place before the Court questions which fall within the reservation made in the 1934 judgment; that they thought of these questions as being concerned with the application, with respect to particular territories, of principles already laid down by the Court in its *décision de principe* of 1934; that they wished to raise, as to these territories, "questions of fact and of law" which the Court had said "might be raised in that connection" and which the Court had not been asked to decide in 1934; that they saw one, but only one, of these "questions of fact and of law" as being that relating to the epoch of detachment of Crete and Samos from the Ottoman Empire; and that they intended that the Court should deal with the "questions of fact and of law" connected with the validity and enforceability *vis-à-vis* Greece of the contract of 1913, with respect to lighthouses in Crete and Samos, in so far as those issues had not become *res judicata* in consequence of the 1934 judgment.

II.

It will suffice for the purposes of this opinion to deal very briefly with the disposition which should be made of the case in accordance with the view expressed above.

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In the judgment of March 17th, 1934, the Court stated (p. 28) that its decision was founded on Article 9 of Protocol XII which provides as follows:

In territories detached from Turkey under the Treaty of Peace signed this day, the State which acquires the territory is fully subrogated as regards the rights and obligations of Turkey towards the nationals of the other contracting Powers and companies in which the capital of the nationals of the said Powers is preponderant, who are beneficiaries under concessionary contracts entered into before the 29th October, 1914, with the Ottoman Government or any local Ottoman authority. The same provision will apply in territories detached from Turkey after the Balkan wars so far as regards concessionary contracts entered into with the Ottoman Government or any Ottoman local authority before the coming into force of the treaty providing for the transfer of the territory. This subrogation will have effect as from the coming into force of the treaty by which the transfer of territory was effected except as regards territories detached by the Treaty of Peace signed this day, in respect of which the subrogation will have effect as from the 30th October, 1918.

Several questions arise in connection with the application of this Article to the contract of April 1st/14th, 1913, as regards lighthouses situated in Crete and Samos.

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As Crete and Samos were not "detached from Turkey under the Treaty of Peace" of Lausanne, Article 9 of Protocol XII can have no application to them unless it can be said that they were "detached from Turkey after the Balkan wars". The question arises, therefore, as to the sense in which the term "detached" (*détachés*) was employed in Article 9.

The same term "detached" (*détachés*) was employed in the fifth paragraph of the special agreement of August 28th, 1936. Early in the written proceedings, the French Agent (French Memorial, p. 5) thus stated the question now before the Court:

Ce dont il s'agit précisément est ceci: Est-ce que, dans une certaine période où ces territoires *n'étaient pas encore grecs*, ils pouvaient déjà être considérés comme n'étant plus ottomans au point que le Gouvernement impérial ottoman n'avait plus le droit d'y passer certains contrats?

It is in this sense, the Greek Agent insists, that the epoch of detachment is to be taken into account by the Court; in his view, detachment is to be considered to have taken place upon

a discontinuance of the power to conclude concessionary contracts such as the contract of April 1st/14th, 1913. It was apparently in this sense that the term "*détachés*" had been employed in the Greek *note verbale* of July 17th, 1934. At later stages of the presentation of the case, the French Agent seems to have taken a different view; he assimilated the word *détachés* in the fifth paragraph of the special agreement to the word *détachés* in Article 9 of Protocol XII, and he argued that "le détachement, dans le système de ce texte [i.e., Article 9], ne se conçoit pas sans un changement de souveraineté". It thus appears that the parties are not agreed as to the meaning of the term *détachés* as used in the special agreement of August 28th, 1936. Even if they can be said to be agreed that the term as used in the special agreement is the equivalent of the term as used in Article 9 of Protocol XII, they are not agreed as to the meaning of the term in the latter instrument.

A somewhat similar disagreement existed in 1934 (Series A/B, No. 62, pp. 15-16) with reference to the term "duly entered into", used both in the special agreement of July 15th, 1931 and in Article 1 of Protocol XII. The Court was then aided by reference to *travaux préparatoires* relating to the special agreement of July 15th, 1931; but in this case it has been supplied with no comparable historical facts with reference to the special agreement of August 28th, 1936.

The Court's judgment of 1934 offers little assistance in this connection. There it was said (p. 28):

In founding its decision on Article 9 of Protocol XII, the Court has not overlooked the fact that the words used in that Article differ somewhat from those used in the first Article of the Special Agreement: thus, the Special Agreement speaks of "territories which were assigned" to Greece "after the Balkan wars or subsequently"; whereas Article 9 refers to "territories detached from Turkey" either "under the Treaty of Peace" (of Lausanne) or "after the Balkan wars". The Court is, however, of opinion that in both texts and in so far as concerns Greece the same territories are meant, all the more so, since neither Party, when discussing Article 9, has suggested that there is any substantial difference between the territories referred to in these two texts.

In this case, the question as formulated in the special agreement distinctly states that the territories in question, Crete and Samos, "were assigned to that [the Greek] Government after the Balkan wars", and yet the Court is directed to take into account the period at which these territories were detached

from the Ottoman Empire. In view of this fact, it can not be said in this case, as it was said in the former case, that "the same territories are meant" by *territories assigned to Greece* and by *territories detached from the Ottoman Empire*.

The word *détachés* might have been used in the fifth paragraph of the special agreement of August 28th, 1936 in either of two senses: (1) in the sense of discontinuance of such governmental power as is necessary for making concession contracts, *i.e.*, the sense in which at one time the Agents of both parties interpreted the word; or (2) in the sense of a complete extinguishment of a former sovereignty by such an act as cession. The assignment of one of these meanings to the term as used in the special agreement would not necessarily, however, dispose of the question as to the meaning of the term as used in Article 9 of Protocol XII.

Whatever meaning is given to the term *détachés* in the fifth paragraph of the special agreement and in Article 9 of Protocol XII, it would still remain for the Court to appreciate the importance of the question for a decision of this case.

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Another question must be answered, also, before the Court, basing its decision on Article 9 of Protocol XII, can say that as to lighthouses in Crete and Samos the contract of April 1st/14th, 1913 was "duly entered into and is accordingly operative as regards the Greek Government". This cannot be said unless it can be found that, notwithstanding the autonomy possessed by Crete and Samos, the Sultan or the Ottoman Government had legal power on April 1st/14th, 1913 to enter into concessionary contracts with reference to lighthouses in these territories. Protocol XII did not have the effect of giving validity to contracts which had never been valid theretofore. It did not set up *ultra vires* contracts. When it was being drafted, the Turkish representative, Ismet Pasha, must have had this point in mind in saying that he *ne peut pas reconnaître comme valables des engagements pris par le Gouvernement de Constantinople pour les territoires sur lesquels ne s'étendait pas son autorité effective*. (*Recueil des Actes de la Conférence de Lausanne*, second series, I, pp. 419-420.) The whole conception of the subrogation for which Article 9 provides is predicated upon the previous existence of *droits et charges de la Turquie*. Hence, even if the term *dûment intervenu* should be given a narrower meaning, the contract of April 1st/14th, 1913 cannot be held to be *opérant vis-à-vis* the Greek Government, with respect to lighthouses in Crete and Samos, unless the Sultan or the Ottoman Government had

power on that date to bind these territories by such a contract.

The Agents of the parties have not directly addressed themselves to this question. The French Agent has not argued it because in his view of the task of the Court the question does not arise. The Greek Agent has confined his discussion of the effect of the autonomy of Crete and Samos to its bearing on the epoch of detachment. This presentation of the case does not preclude the Court's consideration of the question as having been placed before it by the special agreement. Such consideration is greatly facilitated by the Agents' exploration of the extent of the autonomy of Crete and Samos in connection with the question as to the epoch of their detachment from the Ottoman Empire.

This question as to the power of the Sultan or the Ottoman Government to conclude the contract of April 1st/14th, 1913 in respect to Crete and Samos, was in no way determined by the Court's judgment of 1934. It was not then considered by the Court, and except for a very general reference by the Greek Agent to Crete as a vassal State (Series C, No. 74, p. 317) it was in no way adumbrated in the argument before the Court at that time. It is one of the "questions of fact and of law" to which the Court's reservation applies.

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With the assistance and protection of other Governments—*viz.*, those of France, Great Britain, Italy and Russia—and by measures taken in opposition to the will of the Ottoman Government, Crete achieved its autonomy in 1899. Its Constitution was finally adopted by the Cretan Assembly on April 29th, 1899, after it had been approved not by the Ottoman Government but by representatives of the four European States meeting in Conference at Rome. The first Article of the Cretan Constitutions of 1899 and of 1907 provided that the island of Crete, with the adjacent islets, should constitute a State (*πολιτεία*) enjoying a complete autonomy, under the conditions established by the four Great Powers. Throughout the action of these latter they had at all times declared their intention to maintain the integrity of the Ottoman Empire; in notifying the Sublime Porte of their selection of a High Commissioner of Crete, on November 30th, 1898, they expressed a willingness to confirm the "supreme rights of the Sultan" in Crete (Greek Memorial, p. 34), and in notifying the High Commis-

sioner of their approval of the first Constitution, on March 28th, 1899, they stipulated that the Constitution should not impinge on the "legitimate rights" of the Sultan (French Memorial, p. 38).

The Agent of the Greek Government characterizes the situation of Crete after 1899 as that of an *État mi-souverain*; the Agent of the French Government stresses the suzerainty of the Sultan. It is unnecessary to attempt to place the Crete of this period in a precise legal category. Nor is it necessary, in this opinion, to set forth the complete extent of the Cretan autonomy. It will suffice to say that after 1899 the Ottoman Government exercised no governmental powers in Crete, and that although the Sultan's flag was ceremoniously flown in Crete until February, 1913, the government of this island was entirely in the hands of the High Commissioner and the Cretans themselves, subject in certain respects to the approval of the four European States. In its external relations, the Cretan Government acted independently of the Ottoman Government, also, and it concluded or acceded to various international conventions, among them those of the Universal Postal Union and the International Telegraphic Union. If it can be said that a theoretical sovereignty remained in the Sultan after 1899, it was a sovereignty shorn of the last vestige of power. He could neither terminate nor modify the autonomy with which Crete had been endowed against his will and with the sanction of the four European States. A juristic conception must not be stretched to the breaking-point, and a ghost of a hollow sovereignty cannot be permitted to obscure the realities of this situation.

After 1908 the union of Crete with Greece was envisaged in various acts of the Cretan Government, and in 1912, on the eve of the war with Turkey, some steps were taken in this direction. By Article 4 of the unratified Treaty of London of May 17th/30th, 1913 (107 *British and Foreign State Papers*, p. 656), it was provided that the Sultan ceded the island of Crete to the Balkan States allied against him and renounced in their favour all the *rights of souveraineté et autres qu'il possédait* over the island; this provision was maintained between Greece and Turkey in the Treaty of Athens, signed on November 1st/14th, 1913 and brought into force later in that month (*ibid.*, p. 893), and by the end of 1913 all the other Balkan States had renounced their interests in Crete in favour of Greece. An analysis of the equivocal phrase employed in the Treaty of London would shed no light on the issues of this case.

The concession contract of 1860 as it had been extended in 1879 and 1894 was applicable to lighthouses in Crete, and it did not cease to be so applicable after the realization of Cretan autonomy. The firm of Collas & Michel was therefore permitted to continue its maintenance of the previously established lighthouses after the reins of government had passed to the local authorities, but it seems that no new lighthouses were established. Negotiations were under way from 1903 to 1911 concerning the construction of lighthouses at Spada and Elaphonissi, during the course of which the governments of certain maritime States, for reasons which were not stated, addressed themselves to the Ottoman Government with reference to the question. The fact does not warrant any conclusion to be drawn as to the lodgment of legal power; the Cretan Government finally refused to authorize the construction, and in the end nothing came of the matter. After the expiration in 1924 of the contract of 1860 as extended in 1879 and 1894, the Greek Government did not in any way admit the applicability in Crete of the contract of April 1st/14th, 1913; indeed, it took into its own hands the construction of lighthouses in Crete (Series C, No. 74, p. 212).

The position of Crete with reference to the contract of April 1st/14th, 1913 may be compared with that of Cyprus with reference to the contract of June 30th/July 12th, 1879. By the Convention of June 4th, 1878, the Sultan consented to assign the island of Cyprus to be occupied and administered by Great Britain; an Annex to the Convention, dated July 1st, 1878, envisaged the evacuation of the island by Great Britain on certain conditions. Unquestionably, Cyprus remained a part of the Ottoman Empire and subject to the Sultan's sovereignty during the period of the occupation, and until it was annexed by Great Britain on November 5th, 1914. The annexation was recognized by Turkey in Article 20 of the Treaty of Peace signed at Lausanne on July 24th, 1923. The lighthouse contract of August 8th/20th, 1860 was applicable to three lighthouses in Cyprus, and it appears from a statement made by the Colonial Secretary's Office in Cyprus (Greek Memorial, p. 65) that after the beginning of the British occupation "the concessionaries were allowed by the British Government to continue in the exercise of their privilege, but on the expiration of the concession, 4th September, 1884, formal handing over of the lighthouses to the Government of the Island took place". Apparently no claim was made that after September 4th, 1884 the contract of 1860 as extended in 1879 continued to be applicable to lighthouses in Cyprus.

It seems necessary to conclude that on April 1st/14th, 1913 neither the Sultan nor the Ottoman Government had power to extend the then existing concessionary contract with respect

to lighthouses in Crete and the adjacent islets. Hence, whether Crete should be said to have been detached from the Ottoman Empire before or after the Balkan wars, it is impossible to apply Article 9 of Protocol XII as the basis for subrogating Greece to the rights and charges of Turkey under the contract of April 1st/14th, 1913 in so far as it concerns lighthouses in Crete and the adjacent islets.

On this view, the Court should refuse to say that the contract of April 1st/14th, 1913 "was duly entered into and is accordingly operative as regards the Greek Government" in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets.

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The autonomous régime set up in Samos in 1835 was in some respects unlike that in Crete. If it was originally due to the intercession of France, Great Britain and Russia (1 Young, *Corps de Droit ottoman*, p. 114), it rested on the expressed will of the Sultan, on the provisions of the *Hatt* issued by him on August 23rd, 1832 and on the additional provisions contained in the *Hatt* issued by him on September 16th, 1852. The first of these decrees describes Samos as a "part of the hereditary estates" of the Sultan. Unlike Crete, Samos was obligated to pay an annual tribute to the Sublime Porte. While the Government of the Principality exercised a large control of its local affairs, it seems doubtful whether in external affairs it ever achieved independence comparable to that of Crete. In this connection, however, it may be noted that in 1926 the Greco-Bulgarian Mixed Arbitral Tribunal held that a vessel flying the Samian flag was to be treated as a neutral vessel during a war in which Turkey was a belligerent. (*Katrantsios v. Bulgaria*, 7 *Recueil des Décisions des Tribunaux arbitraux mixtes*, p. 39.)

The autonomy of Samos continued for almost four score of years. By Article 5 of the unratified Treaty of London of May 17th/30th, 1913, it was provided that the future of the island should be determined by the Heads of six European States; this provision was maintained between Greece and Turkey by Article 15 of the Treaty of Athens of November 1st/14th, 1913. Three months later, on February 13th, 1914, the Governments of the six States decided to turn the island over to Greece; this decision was confirmed by Article 12 of the Treaty of Peace signed at Lausanne on July 24th, 1923.

While the autonomy possessed by Samos was extensive, admittedly (French *Mémoire*, p. 33) being complete as to commercial and maritime matters, the Samian Government did not

assume control of the administration of lighthouses and it did not interfere with the performance in Samos by Collas & Michel of their contracts concluded with the Ottoman Government. The contract of 1860, in Annex A (Series C, No. 74, p. 382), provided for the establishment of the *Feu de Vathy* in Samos, and the Greek Government admits (*ibid.*, p. 210) that this *Feu* was established in 1890; it must have been established, therefore, under the concession contract of 1860 as extended in 1879. The Greek Government also admits that the *Feu de Tigani* was established in Samos in 1912; this must have been done under the contract of 1860 as extended in 1879 and 1894. In reply to a question the French Agent has stated that Collas & Michel maintained these two lights until 1915, and collected the *droits de phares* until a more recent date; and that neither the Samian Government nor the Greek Government made objection to the application of the contracts.

These facts have a bearing on the extent of the autonomy enjoyed by Samos. In the face of them, it is impossible to say that on April 1st/14th, 1913 the Sultan or the Ottoman Government lacked the legal power to extend the concession of Collas & Michel with respect to lighthouses in Samos. The same facts also dispose of a contention advanced by the Greek Agent that in view of the autonomy possessed by Samos the parties to the contract of April 1st/14th, 1913 did not intend that the contract should apply to Samos.

It follows that whatever view be taken of the meaning of the term *détachés* in the fifth paragraph of the special agreement of August 28th, 1936 and in Article 9 of Protocol XII, Samos was not detached from the Ottoman Empire until after the Balkan wars. As the contract of 1913 was not *ultra vires* to the Sultan or the Ottoman Government with respect to lighthouses in Samos, Article 9 of Protocol XII subrogates Greece to the *droits et charges* of Turkey under the contract, in so far as it concerns such lighthouses.

This makes it necessary to say that the contract of April 1st/14th, 1913 "was duly entered into and is accordingly operative as regards the Greek Government" in so far as concerns lighthouses situated in the territory of Samos.

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To the extent indicated in this opinion, I am compelled to dissent from the judgment of the Court.

(Signed) MANLEY O. HUDSON.